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PART II

Statutory Notifications (S.R.O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF WATER AND POWER

NOTIFICATION

Islamabad, the 4th August, 2015

S. R. O. 755 (I)/2015.— In pursuance of sub-section (4) of section 31 of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997) the Federal Government is pleased to direct that the following further amendment shall be made in its Notification. No. S R.O. 594 (I)/2011, dated the 9th June, 2011, namely:—

In the aforesaid Notification, after Annexure-XXXV, the following new Annexure shall be added, namely:—

(2789)

"Annex-XXXVI

NISHAT CHUNIAN POWER LIMITED
REIMBURSEMENT OF 7.5% WITHHOLDING TAX ON DIVIDENDS

Tax Challan No.	Payment Date	Dividend Amount agst. which Tax is Being Withheld	Tax Amount		Tax Amount Admissible	
		(Rs.)	(Rs.)	Equivalent (USD)*	(Rs.)	Equivalent (USD)*
1119036	21-Jan-15	281,378,730	21,103,405	200,603	21,103,405	200,603
1119037	21 Jan-15	93,628,618	7,022,146	66,750	7,022,146	66,750
1119038	21 Jan-15	40,308,150	3,023,111	28,737	3,023,111	28,737
1136971	21-Apr-15	281,378,730	21,103,405	216,445	17,576,670	180,274
1136973	21-Apr-15	97,535,594	7,315,170	75,027		-
1136977	21--Apr 15	29,320,930	2,199,070	22,555		-
		823,550,752	61,766,306	610,117	48,725,332	476,363

*NBP TT % OD Selling Rate of USD as on 21st January & 21st April, 2015 was Rs. 105.2 & 97.5 respectively.

Calculation of hourly Rate:

withholding tax on dividend

Capacity

Rs. 48,725,332

Hours in a year

kW 195,722

No. 8,784

Tariff component of withholding tax on dividend

(1st June 2015 to 31st May, 2016)

Rs./kW/Hour 0.0283

Carry Forward of Unclaimed Dividend Tax:

USD

Balance Carried Forward for 4th Agreement Year

(As per decision No. NEPRA/TRF-70/NCPL/2007/83-85 dated 02 Jan 2014)

Maximum Pass Through on Dividend Tax for 5th Agreement Year

636,166

[15% . \$47,481,395+\$1,363,1881,7.5%

Loss claimed during 5th Agreement Year (1st and 2nd Dividend)

(476,363)

[21 July 2014 to 20 July 2015.]

Unclaimed due to maximum pass through limit*.

(159,802)

Balance Carried Forward for 5th Agreement Year

*Out of 367,346,939 paid-up shares, 90,469,941 shares and 95,192,103 shares at the time of payment of 1st and 2nd dividend respectively were exempt from withholding tax on dividends. Accordingly the carry forward of unclaimed withholding tax on dividends has been reduced to the extent of dividends paid to them.

[No PII-2(08)/2007.]

SYED MATEEN AHMED,
Section Officer (Tariff).